

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #6	CCRB Case #: 201806779	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 08/15/2018 6:00 AM	Location of Incident: [REDACTED]	Precinct: 40	18 Mo. SOL 2/15/2020	EO SOL 2/15/2020	
Date/Time CV Reported Fri, 08/17/2018 11:41 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/17/2018 11:41 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jose Reyna	7384	942422	NARCBBX
2. DT3 Nelson Nin	5300	950955	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Nelson Nin	Abuse: Detective Nelson Nin entered § 87(2)(b) in the Bronx.	[REDACTED]
B.DT3 Nelson Nin	Abuse: Detective Nelson Nin searched § 87(2)(b) in the Bronx.	[REDACTED]
C.DT3 Jose Reyna	Force: Detective Jose Reyna struck § 87(2)(b) with a police shield.	[REDACTED]

Case Summary

On August 17, 2018, § 87(2)(b) filed this complaint with CCRB.

On August 15, 2018, at approximately 6:00 a.m., § 87(2)(b) was home with her § 87(2)(b) son, and three other minor children at § 87(2)(b) in the Bronx, when Det. Nelson Nin and other members of the 40th Precinct module of Narcotics Borough Bronx executed a search warrant at the apartment (**Allegation A and B: Abuse of Authority** – § 87(2)(g)). After entering the apartment, Det. Jose Reyna struck § 87(2)(b) in the head with a ballistic shield (**Allegation C: Force** – § 87(2)(g)). After searching the apartment, a summons was issued to § 87(2)(b) § 87(2)(b). No one else was arrested or issued a summons. § 87(2)(b) was transported to the hospital and received four sutures for a laceration to the head.

There was no video of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Nelson Nin entered
§ 87(2)(b) **in the Bronx.**

Allegation (B) Abuse of Authority: Detective Nelson Nin searched
§ 87(2)(b) **in the Bronx.**

It is undisputed that members of the 40th Precinct module of Narcotics Borough Bronx entered and searched § 87(2)(b). It is undisputed that the police did not announce themselves prior to entering the apartment.

§ 87(2)(b) (**Board Review 1**) resides at the apartment with her four children. § 87(2)(b) was asleep in her room when she was awoken by the sound of a loud bang. § 87(2)(b) was handcuffed and brought to the living room where she found all of the occupants of the apartment also in handcuffs. Officers searched every room in the apartment, frequently out of sight of § 87(2)(b) and § 87(2)(b). The officers claimed to have found marijuana in § 87(2)(b)'s room and issued a summons § 87(2)(b). No one else was arrested or issued a summons.

Search warrant § 87(2)(g) authorized and directed officers to search § 87(2)(b) for crack cocaine, evidence tending to demonstrate that the premises are utilized for the unlawful possession, packaging, and sale of crack cocaine, drug paraphernalia, and United States currency, within 10 days of the issuance of the warrant. The warrant authorized officers to enter and search without giving notice. Det. Nin was the affiant to the search warrant and was the investigating officer.

According to Criminal Procedure Law §690.05 (**Board Review 16**), a search warrant is a court order and process directing a police officer to conduct a search of a premises for seizing a designated property and delivering said property to the issuing court.

Allegation (C) Force: Detective Jose Reyna struck § 87(2)(b) with a police shield.

It is undisputed that Det. Reyna caused an injury to § 87(2)(b) with a police shield. § 87(2)(b)'s conduct and the nature of the force used by Det. Reyna remains in dispute.

§ 87(2)(b) stated (**Board Review 3**) that he was asleep alone in his bedroom when he was awoken by the sound of a loud bang. § 87(2)(b) opened his eyes as Det. Reyna kicked open the closed door to his bedroom. Det. Reyna was wearing a ballistic helmet and carrying a ballistic shield. § 87(2)(b) sat up in his bed, with his feet on the ground and raised both hands up to the same level as his head. Det. Reyna told § 87(2)(b) “put your hands up.” Without any warning, Det. Reyna struck § 87(2)(b) in the forehead with the front of the shield, causing a laceration to his forehead above his left eye. § 87(2)(b) was then handcuffed and detained in the living room while officers searched the apartment.

§ 87(2)(b) stated that after § 87(2)(b) was brought out of his room, he was bleeding from a laceration to his forehead. § 87(2)(b) did not see what transpired inside § 87(2)(b)'s room. § 87(2)(b) declined to allow her other younger children to be interviewed. § 87(2)(b) and § 87(2)(b) both stated that there were no other witnesses to what transpired in § 87(2)(b)'s room.

Det. Reyna was the first shield position of the first bunker entry team. (**Board Review 4**) Accordingly, he was designated to be the first officer to enter the apartment and was equipped with a ballistic shield, heavy vest and a ballistic helmet. Det. Reyna carried the shield with one hand and his duty weapon in his other hand. The shield has a clear window near the top of it, and flashlights installed around in the window facing outward. Det. Reyna stated (**Board Review 5**) that the door was breached by other members of the entry team. The warrant was a no-knock warrant, so the officers did not announce themselves prior to breaching the door. Upon the door being open, Det. Reyna saw a hallway leading from the front door. Det. Reyna saw § 87(2)(b) standing in the hallway. Det. Reyna and Det. Nin (**Board Review 6**) both stated that after the door was breached, officers announced themselves repeatedly by saying, “Police. Search warrant.” Det. Reyna claimed that § 87(2)(b) ran into a room and closed the door. Det. Reyna walked to the room which had its door closed and forced open the door. Det. Nin, who was the first bunker security, followed Det. Reyna into the room. § 87(2)(b) was lying awake in bed with the bedsheets at waist level, and his hands underneath the sheets. Det. Reyna told § 87(2)(b) three or four times, “Show me your hands.” § 87(2)(b) did not move and did not show his hands. After the third or fourth time of telling § 87(2)(b) to show his hands, Det. Reyna pushed down on § 87(2)(b)'s upper torso with the outer side of his ballistic shield to pin § 87(2)(b) to the bed. Det. Reyna stated that he did this with a pushing motion and denied that his action was a strike to the head. Det. Reyna stated that he was trained to use the ballistic shield to either strike or pin an individual during narcotics search warrant training. Det. Reyna decided to pin § 87(2)(b) because § 87(2)(b) had not shown his hands, and Det. Reyna wanted to prevent any aggression. After pinning him this way for a couple of seconds, § 87(2)(b) began to turn over onto his belly while in bed and placed his hands behind his back. As § 87(2)(b) did this, Det. Reyna relieved the pressure he placed on § 87(2)(b) and Det. Nin handcuffed § 87(2)(b) while he was face-down on his bed.

Det. Nin stated that he was behind Det. Reyna in the room and could not see § 87(2)(b). However, he confirmed that Det. Reyna told § 87(2)(b) repeatedly to show his hands before Det. Reyna used his shield to pin § 87(2)(b) to the bed. Only after Det. Reyna pinned § 87(2)(b) down, was Det. Nin able to move around Det. Reyna to reach § 87(2)(b) and handcuff him.

After § 87(2)(b) was handcuffed, and picked up from the bed, Det. Reyna noticed that § 87(2)(b) was bleeding from a laceration to his forehead. Det. Reyna did not know what specifically caused the laceration, but believed it was likely from his ballistic shield. Det. Reyna stated that the outer surface of the ballistic shield was smooth, apart from the border of the window and the installed flashlights around the window. Det. Reyna notified his supervisor that § 87(2)(b) was injured and an ambulance was called. A photograph was taken of § 87(2)(b)'s injury while inside the apartment by Det. Reyna (**Board Review 7**). It was incorporated into a Threat Resistance Injury Report which Det. Reyna generated after returning to his office.

The TRI report (**Board Review 8**) indicated that § 87(2)(b) did not use any physical force against officers, and that Det. Reyna struck § 87(2)(b) with a ballistic shield. In the Investigating Supervisor's Assessment Report (**Board Review 9**), Captain Steven Dixon stated that he interviewed Det. Reyna and that Det. Reyna stated that he did not intentionally strike § 87(2)(b) with the shield. The AIDED report (**Board Review 10**) also indicated that § 87(2)(b) was struck with a ballistic shield.

The record of § 87(2)(b)'s treatment at § 87(2)(b) Hospital indicates he arrived with a complaint of pain and bleeding from his forehead and he stated that he was struck in the head by a police shield. It was documented that § 87(2)(b) had a two-inch laceration above his left eyebrow. He also had another half centimeter laceration on his right cheek. The laceration above his left eyebrow received four sutures. Lidocaine was applied, and § 87(2)(b) was discharged. (**See Privileged Documents**)

According to Patrol Guide procedure 221-01 (**Board Review 11**), In determining whether the use of force is reasonable, members of the service should consider the following:

- a. The nature and severity of the crime/circumstances
- b. Actions taken by the subject
- c. Duration of the action
- d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders
- e. Whether the subject is actively resisting custody
- f. Whether the subject is attempting to evade arrest by flight
- g. Number of subjects in comparison to the number of MOS
- h. Size, age, condition of the subject in comparison to the MOS
- i. Subject's violent history, if known
- j. Presence of hostile crowd or agitators
- k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g), § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 12**).
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- Det. Reyna has been a member of service for 12 years and has been a subject in 10 other CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)
- Det. Nelson Nin has been a member of service for seven years and has been a subject in nine other CCRB complaints and 27 allegations, of which two were substantiated.
 - 201214417 involved a substantiated allegation of refusal to provide name and shield number against Det. Nin. The Board recommended Command Discipline and the NYPD imposed instructions.
 - 201506894 involved a substantiated allegation of refusal to obtain medical treatment against Det. Nin. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal and emotional injuries, pain and suffering, fear, loss of liberty, invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment and humiliation and seeks \$1,000,000 as redress (**Board Review 13**). There is no 50H hearing scheduled.
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (**Board Review 14**).
- According to the Office of Court Administration (OCA), § 87(2)(b) was disorderly conduct (once), § 87(2)(b)

Investigator: _____

Signature _____

Inv. Simon Wang _____

Print Title & Name _____

Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____